

26NWCV02012 26NWCV02012

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-07-21

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Case Number: 26NWCV02012 Hearing Date: July 21, 2026 Dept: L

Petitioner Blue Hill Specialty

Insurance Company's Motion to Compel Respondent's Responses to Discovery is GRANTED as to the Form Interrogatories, Special Interrogatories, and Requests for Production of Documents, and is DENIED without prejudice as to the Requests for Admissions.

Petitioner is ordered to pay
an additional \$180.00 in filing fees.

Petitioner is awarded \$995.00
in sanctions, payable within 60 days.

Petitioner to give notice.

Background

On November 11, 2025, Respondent
Trino Eredia ("Respondent") made a demand on Petitioner Blue Hill Specialty
Insurance Company ("Petitioner") for underinsured motorist arbitration.
(Vickers Decl., ¶ 2, Exh. A.)

On March 12, 2026, Petitioner
propounded an initial set of discovery requests, including Form
Interrogatories, Special Interrogatories, Requests for Admission, and Requests
for Production of Documents ("Discovery Requests"). (Vickers Decl., ¶ 3, Exh.
B.) On April 30, 2026, Petitioner attempted to meet and confer regarding
respondent's failure to respond, and Petitioner received no answer. (Vickers
Decl., ¶ 4, Exh. C.)

On June 10, 2026, Petitioner filed a Petition to be Assigned a Case Number ("Petition") in this uninsured motorist action. Respondent was served the Petition on June 10, 2026. (See Petition POS.)

Petitioner now moves to compel Respondent's responses to the Discovery requests. Petitioner also requests sanctions in the amount of \$2,595.00.

No opposition has been filed as of July 20, 2026. Respondent was served this Motion via electronic service on June 23, 2026. (See Motion POS.)

Legal Standard

The California Insurance Code requires an insurer to provide uninsured motorists coverage in each bodily liability insurance policy it issues covering liability arising out of the ownership, maintenance, or use of a motor vehicle. (Ins. Code., § 1158.2, subds. (a)(1)-(2).) The policy "shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration." (Ins. Code., § 1158.2, subd. (f).)

The Insurance Code adopts the Civil Discovery Act in its entirety and "grants the superior court the exclusive jurisdiction to hear discovery matters arising under uninsured motorist arbitrations." (Miranda v. 21st Century Ins. Co. (2008) 117 Cal.App.4th 913, 926.) Leave of the court is required to commence discovery within 20 days of the accident. (Ins. Code, § 11580.2, subds. (f)(3), (6).) Otherwise, discovery between insurer and insured may proceed without regard to when the arbitration is initiated and there is no requirement that either have entered a "formal appearance" in the proceeding. (Workman v. Superior Court (1986) 176 Cal.App.3d 493, 500.)

Further, filing and service of complaint is not necessary. An "application to commence discovery" coupled with a motion to compel discovery may be filed with the court and, where the party

against whom discovery is sought is represented by counsel, served upon counsel. (Miranda, supra, 117 Cal.App.4th at pp. 927-928.)

Discussion

Petitioner has propounded the Discovery Requests on Respondent. Respondent thereafter failed to serve responses and failed to reply to Petitioner's meet and confer letter. Thus, Petitioner initiated proceedings in this Court to commence discovery. Petitioner now moves to compel Respondent's responses to the Discovery Requests.

No opposition has been filed.

The Court initially notes that the Motion should have been filed as four separate motions, as it involves four separate discovery requests. Multiple motions should not be combined into a single filing, as each motion requires a separate filing fee. (See Govt. Code, § 70617, subd. (a)(4) [setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing]; see also *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460 [finding filing fees are jurisdictional and it is mandatory for court clerks to demand and receive them].)

Thus, Petitioner is ordered to pay an additional \$180.00 in filing fees.

The Court finds that Respondent has failed to provide timely responses to the Discovery Requests.

As to the Requests for Admissions, Petitioner only requests that Respondent provide responses. However, the only recourse for a responding party's failure to timely respond to requests for admissions is a motion to deem requests for admissions admitted, pursuant to Code of Civil Procedure section 2033.280. Here, Petitioner does not request that the Requests for Admissions be deemed admitted under that provision. The Requests for Admissions are not automatically admitted without a proper noticed motion.

Accordingly, the Motion to Compel

Discovery is granted as to the Form Interrogatories, Special Interrogatories, and Requests for Production of Documents, and is denied without prejudice as to the Requests for Admissions.

Sanctions

Petitioner also requests sanctions in the amount of \$2,595.00 to compensate it for preparing this Petition and Motion, reviewing the opposition, preparing the reply, and for traveling to the hearing.

The Court finds sanctions are warranted. However, the Court reduces sanctions considering the simple nature of the Petition and Motion and that no opposition was filed.

Accordingly, Petitioner is awarded \$995.00 in sanctions, payable within 60 days.